



**Bill Number: H.B. 2244**

**Rogers Floor Amendment**

**Reference to: House engrossed bill**

**Amendment drafted by: Leg. Council**

## **FLOOR AMENDMENT EXPLANATION**

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- Allows, rather than requires, a judge to issue an order sealing all records relating to an eviction action when a landlord fails to respond to a motion to compel satisfaction of judgment, as prescribed.

ROGERS FLOOR AMENDMENT  
SENATE AMENDMENTS TO H.B. 2244  
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-1567, Arizona Revised Statutes, is amended to  
3 read:

4 12-1567. Satisfaction of judgment; superior court; filing  
5 procedures; hearing; bond

6 A. The prevailing party shall file a satisfaction of judgment in  
7 the superior court within forty days after a judgment has been paid in  
8 full.

9 B. If the prevailing party fails to file a satisfaction of judgment  
10 or cannot be located after the opposing party has exercised due diligence  
11 in attempting to locate the prevailing party, the opposing party may file  
12 a motion to compel satisfaction of the judgment. The opposing party shall  
13 include with the motion to compel satisfaction of the judgment an  
14 affidavit that evidences proof of payment and, if necessary, the due  
15 diligence that was performed in attempting to locate the prevailing  
16 party. If the motion is granted, the judgment is deemed satisfied.

17 C. A judge may hold a hearing on the motion to compel satisfaction  
18 of the judgment.

19 D. A judge may compel the moving party to post a bond with the  
20 court in the amount of the judgment.

21 E. NOTWITHSTANDING SUBSECTIONS B AND C OF THIS SECTION, IF A TENANT  
22 FILES A MOTION TO COMPEL SATISFACTION OF THE JUDGMENT AGAINST A LANDLORD  
23 FOLLOWING AN EVICTION ACTION AND THE LANDLORD FAILS TO RESPOND TO THE

1 MOTION TO COMPEL SATISFACTION OF THE JUDGMENT WITHIN FIFTEEN DAYS AFTER  
2 THE MOTION IS FILED, ALL OF THE FOLLOWING APPLY:

3 1. THE FEE FOR FILING A MOTION TO COMPEL SATISFACTION OF THE  
4 JUDGMENT IS WAIVED.

5 2. THE JUDGE MAY NOT HOLD A HEARING ON THE MOTION TO COMPEL  
6 SATISFACTION OF THE JUDGMENT.

7 3. THE JUDGMENT IS DEEMED SATISFIED IF THE TENANT SUBMITS PROOF OF  
8 PAYMENT.

9 4. THE JUDGE [~~SHALL~~] [MAY] ISSUE AN ORDER SEALING ALL RECORDS  
10 RELATED TO THE EVICTION ACTION PURSUANT TO SECTION 33-1379.

11 Sec. 2. Section 22-247, Arizona Revised Statutes, is amended to  
12 read:

13 22-247. Satisfaction of judgment; filing procedures; hearing;  
14 bond

15 A. The prevailing party shall file a satisfaction of judgment in  
16 the justice court within forty days after a judgment has been paid in  
17 full.

18 B. If the prevailing party fails to file a satisfaction of judgment  
19 or cannot be located after the opposing party has exercised due diligence  
20 in attempting to locate the prevailing party, the opposing party may file  
21 a motion to compel satisfaction of the judgment. The opposing party shall  
22 include with the motion to compel satisfaction of the judgment an  
23 affidavit that evidences proof of payment and, if necessary, the due  
24 diligence that was performed in attempting to locate the prevailing  
25 party. If the motion is granted, the judgment is deemed satisfied.

26 C. A justice of the peace may hold a hearing on the motion to  
27 compel satisfaction of the judgment.

28 D. A justice of the peace may compel the moving party to post a  
29 bond with the justice court in the amount of the judgment.

30 E. NOTWITHSTANDING SUBSECTIONS B AND C OF THIS SECTION, IF A TENANT  
31 FILES A MOTION TO COMPEL SATISFACTION OF THE JUDGMENT AGAINST A LANDLORD  
32 FOLLOWING AN EVICTION ACTION AND THE LANDLORD FAILS TO RESPOND TO THE  
33 MOTION TO COMPEL SATISFACTION OF THE JUDGMENT WITHIN FIFTEEN DAYS AFTER  
34 THE MOTION IS FILED AND SERVED AS REQUIRED BY THE RULES OF PROCEDURE FOR  
35 EVICTION ACTIONS, ALL OF THE FOLLOWING APPLY:

36 1. THE FEE FOR FILING A MOTION TO COMPEL SATISFACTION OF THE  
37 JUDGMENT IS WAIVED.

38 2. THE JUSTICE OF THE PEACE MAY NOT HOLD A HEARING ON THE MOTION TO  
39 COMPEL SATISFACTION OF THE JUDGMENT.

40 3. THE JUDGMENT IS DEEMED SATISFIED IF THE TENANT SUBMITS AN  
41 AFFIDAVIT THAT EVIDENCES PROOF OF PAYMENT.

1           4. THE JUSTICE OF THE PEACE, AT THE JUSTICE OF THE PEACE'S  
2 DISCRETION, MAY SEAL THE EVICTION PURSUANT TO SECTION 33-1379 IF THE  
3 JUSTICE OF THE PEACE BELIEVES THAT SEALING THE RECORD IS AN APPROPRIATE  
4 REMEDY GIVEN THE LANDLORD'S FAILURE TO COMPLY WITH SUBSECTION A OF THIS  
5 SECTION.

6 Enroll and engross to conform

7 Amend title to conform

WENDY ROGERS

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